

Confidentiality and Data Sharing Agreement

Date of agreement: [REDACTED]

BETWEEN

[REDACTED] Australian Company Number [REDACTED] of [REDACTED]
[REDACTED] and

AND

The University of Auckland of 22 Princes Street, Auckland, New Zealand (**Recipient**).

RECITALS

- A. The Discloser holds de-identified clinical data which it intends to provide to the Recipient for the Purpose.
- B. The Discloser has agreed to disclose information to the Recipient on the terms of this agreement.
- C. The Recipient has agreed to keep confidential the information disclosed to it by the Discloser.

IT IS NOW AGREED:

1 DEFINITIONS

In this agreement:

- 1.1 **Background Intellectual Property** means Intellectual Property prepared or developed prior to the Execution Date by any party, and includes improvements to such Intellectual Property developed during the period of this agreement;
- 1.2 **Confidential Information** means:
 - (a) de-identified clinical data and other information, records, containing Intellectual Property;
 - (b) all de-identified Health Information, Personal Information, health records, radiological and medical images, health data, collected and owned by the Discloser irrespective of form;
 - (c) all unpatented inventions (including those the subject of a patent application), ideas, know-how, concepts, trade secrets, processes, techniques, software, products and all other intellectual property, financial and business information and all other commercially valuable information relating to the Discloser which the Discloser regards as confidential, and includes any such information in the Discloser's possession, power or control concerning or belonging to any other person;
 - (d) all copies, notes and records and all related information generated by the Recipient to the extent incorporating or derived from any information referred to in paragraphs (a), (b) and (c); and
 - (e) any physical items, compounds, components or other materials,
 - (f) [REDACTED]disclosed by or on behalf of the Discloser before, on or after the Execution Date for the Purpose;
- 1.3 **Confidentiality Agreement** has the meaning set out in clause 3.4(a)(ii);
- 1.4 **Data Breach** has the meaning set out in clause 5.7(b);
- 1.5 **Data Contravention** has the meaning set out in clause 5.7(a);
- 1.6 **Discloser** means [REDACTED];
- 1.7 **Execution Date** means the date upon which this agreement is signed by the parties; End date means the date upon which this Agreement will expire, is 2 years from the Execution Date, unless agreed otherwise by both parties.
- 1.8 **Health Act** means the *Health Act 1958* (NZ);
- 1.9 **Health Information** as the context so permits has the meaning as set out in the:
 - (a) Health Records Act; or
 - (b) Health Act;
- 1.10 **Health Records Act** means the *Health Records Act 2008* (Vic);
- 1.11 **Health Services Act** means the *Health Services Act 1988* (Vic);
- 1.12 **Intellectual Property** means all intellectual and industrial property rights and includes any patent, design, copyright, trade mark, plant breeders rights, technology, know-how, and Confidential Information, and all

other intellectual property as defined in Article 2 of the convention of 1967 establishing the World Intellectual Property Organisation;

1.13 **Laws** includes the applicable:

- (a) Health Act;
- (b) Health Records Act;
- (c) Health Services Act;
- (d) Privacy Act; and
- (e) Privacy and Data Protection Act;

1.14 **Licence** has the meaning set out in clause 2;

1.15 **Loss of Data** has the meaning set out in clause 5.7(c);

1.16 **Personal Information** as the context so permits, has the meaning set out in the:

- (a) Privacy and Data Protection Act; or
- (b) Privacy Act;

1.17 **Purpose** means solely for clinical research to be conducted by the Recipient and for no other purpose;

1.18 **Principles** means, as the context so permits the principles governing the collection, use, management, disclosure, transfer and destruction of:

- (a) Health Information in Victoria, Australia and are made pursuant to the Health Records Act;
- (b) data and Personal Information in Victoria, Australia made pursuant to the Privacy and Data Protection Act; and
- (c) Personal Information in New Zealand made pursuant to the Privacy Act;

1.19 **Privacy Act** means the Privacy Act 2020 (NZ);

1.20 **Privacy and Data Protection Act** means the Privacy and Data Protection Act 2014 (Vic);

1.21 **Project Intellectual Property** has the meaning set out in clause 7.3;

1.22 **Relevant Event** means, as the context so permits either a:

- (a) Data Breach;
- (b) Data Contravention; and / or
- (c) Loss of Data;

1.23 **Relevant Information** means, as the context so permits:

- (a) Health Information; and / or
- (b) Personal Information; and

1.24 **Representatives** means the partners, directors, officers, employees, affiliates, representatives (including, without limitation, financial advisers, legal advisers and accountants) or agents of any party.

1.25 **Results** means all data, information, research findings, discoveries, inventions, reports and other results arising from the Recipient's use of the Confidential Information in accordance with the Purpose.

2 LICENCE

The Discloser grants the Recipient a limited, non-exclusive, non-transferrable, irrevocable licence for the course of this Agreement, to access, copy and use the Confidential Information strictly for the Purpose on the terms and conditions of this agreement (**Licence**) and the Recipient accepts the grant of the Licence on the terms and conditions of this agreement.

3 DISCLOSURE AND USE OF CONFIDENTIAL INFORMATION

3.1 The Recipient acknowledges that the Discloser is subject to the Laws and various other laws and principles with respect to collection, storage, security, use, and disclosure of personal and Relevant Information.

- 3.2 In consideration of the Discloser disclosing its Confidential Information to the Recipient, the Recipient agrees:
- (a) to use all Confidential Information of the Discloser solely for the Purpose;
 - (b) to keep confidential all Confidential Information of the Discloser (subject to disclosure permitted under clause 3.3);
 - (c) otherwise to comply with the terms of this agreement.
 - (d) The Discloser will make the Confidential Information available to the Recipient free of charge on or as soon as practical after the Execution Date(s) and
 - (e) in accordance with any arrangements for secure transfer mutually agreed by both parties.
 - (f)
- 3.3 The Recipient may disclose Confidential Information only to those of its officers, affiliates, and employees who:
- (a) have a need to know (and only to the extent that each has a need to know);
 - (b) are aware that Confidential Information of the Discloser must be kept confidential and are subject to appropriate obligations of confidentiality; and
 - (c) if requested by the Discloser, have agreed in writing to comply with the terms of this agreement as if the officer or employee were a party;
 - (d) or if (but only to the extent) required by law to do so.
- 3.4 The Recipient must, at its own expense:
- (a) ensure, at all times, that each officer and employee to whom Confidential Information has been disclosed under clause 3.2 complies with:
 - (i) this agreement; and
 - (ii) any agreement contemplated by clauses 3.3(b) and 3.3(c) (a **Confidentiality Agreement**);
 - (b) notify the Discloser immediately if it becomes aware of a suspected or actual breach of:
 - (i) this agreement; or
 - (ii) a Confidentiality Agreement;
 - (c) immediately take all steps to prevent or stop the suspected or actual breach of:
 - (i) this agreement; or
 - (ii) a Confidentiality Agreement;
 - (d) comply with any direction issued by the Discloser and provide any assistance reasonably requested by it from time to time regarding enforcement of:
 - (i) this agreement; or
 - (ii) a Confidentiality Agreement; and
 - (e) assign any Confidentiality Agreement to the Discloser at its request.
- 3.5 The Recipient must not profit from the use of any of the Discloser's Confidential Information, except in respect of the Purpose.

4 **PRIVACY**

- 4.1 The Recipient agrees to be bound by and comply with:
- (a) each of the Principles;
 - (b) privacy procedures or policies that form part of the Discloser's policies; and
 - (c) the Laws and all other applicable privacy and data protection laws with respect to any act done or practice engaged in by the Recipient for the purposes of this agreement,
- in the same way and to the same extent as the Discloser would have been bound by them in respect of the receipt, storage and use and disclosure of the Confidential Information.

- 4.2 As the Confidential Information contains Relevant Information collected and owned by the Discloser, the Recipient must:
- (a) take all reasonable steps to ensure that the Relevant Information is protected against misuse and loss, and from unauthorised access, modification or disclosure; and
 - (b) give the Discloser notice as soon as the Recipient becomes aware that use or disclosure of the Relevant Information is required or authorised by or under Law.
- 4.3 If the Recipient becomes aware that it has used or disclosed, the Confidential Information in contravention of this agreement, the Recipient must promptly give the Discloser notice of the full details of the contravention.
- 5 DATA PROTECTION**
- 5.1 The Recipient must only use the Confidential Information for the Purpose.
- 5.2 The Recipient must not:
- (a) use the Confidential Information held by Recipient other than for the Purpose;
 - (b) purport to sell, let for hire, assign rights in or otherwise dispose of any Confidential Information;
 - (c) copy, decompile, modify, reverse engineer or create derivative works out of any of the Confidential Information; or
 - (d) alter the Confidential Information in any way, other than contemplated by the parties for the Purpose.
- 5.3 The Recipient must ensure that all Confidential Information is signified as the property of the Discloser and must not cause or have caused any pledge, lien, charge, mortgage, encumbrance of a third party or any other security interest to be placed on any part of the Confidential Information or any database (whether electronic or otherwise) in which such the Confidential Information is stored.
- 5.4 The Recipient must establish and maintain safeguards against:
- (a) the destruction, loss or alteration of;
 - (b) the misuse of, or interference with; and
 - (c) the unauthorised access to, modification or disclosure of,
 - (d) all Confidential Information in the possession, custody or control of the Recipient, that:
 - (e) are no less rigorous than those safeguards employed by the Discloser, and in any event are no less rigorous than safeguards that meet generally accepted industry standards; and
 - (f) comply with all Laws.
- 5.5 Without limiting the rights or obligations of any party under this agreement, the Recipient must promptly on request by the Discloser at any time whilst in the Recipient's possession, provide the Discloser with a copy of all Confidential Information stored by the Recipient on its servers or otherwise in its possession or control, in such format as is reasonably directed by the Discloser.
- 5.6 Whilst the Confidential Information is in the possession of or under the control of the Recipient, the Recipient must regularly advise the Discloser of any system, configuration and other requirements and instructions necessary to facilitate the receipt and restoration of Confidential Information in the manner and format contemplated under clause 5.5.
- 5.7 If the Recipient becomes aware or suspects that:
- (a) any of its personnel is using or disclosing, or has used or disclosed the Confidential Information in contravention of this agreement (**Data Contravention**);
 - (b) there has been unauthorised access to, or unauthorised disclosure of any Confidential Information (**Data Breach**); or
 - (c) Confidential Information has been lost in circumstances where unauthorised access to, or unauthorised disclosure of, it may occur (**Loss of Data**),
- then the Recipient must immediately notify the Discloser of that Relevant Event.
- 5.8 If the Discloser becomes aware, or suspects, that a Relevant Event has occurred then the Recipient must:

- (a) promptly disclose to the Discloser all information relevant to that actual or suspected Relevant Event, including all relevant information;
- (b) co-operate with the Discloser in investigating whether a Relevant Event has occurred and the circumstances surrounding that Relevant Event; and
- (c) provide the Discloser with access to and copies of relevant records relating to the investigation.

6 ACKNOWLEDGMENT AND INDEMNITY

- 6.1 The Recipient acknowledges that it is aware that any breach of this agreement will result in the Discloser suffering damage, and that an award of damages may be insufficient to compensate the Discloser for that breach. Each party must use all reasonable efforts to meet and discuss in good faith any dispute arising in relation to this Agreement. Accordingly, in addition to other remedies that may be available, the Discloser may seek and obtain injunctive relief against such a breach or a threatened breach.
- 6.2 The Discloser indemnifies the Recipient against all losses, damages, expenses and legal costs (on a solicitor and own client basis and whether incurred by or awarded against the Discloser) that the Discloser may reasonably sustain or incur as a result, whether directly or indirectly, of any breach by the Recipient of this agreement.
- 6.3 The Recipient acknowledges that:
- (a) the Confidential Information is being provided 'as is';
 - (b) the Discloser makes no representations or warranties as to:
 - (i) the accuracy or completeness of the Confidential Information; or
 - (ii) its usefulness in achieving any purpose; and
 - (c) to the extent not excluded by law, the Discloser disclaims and excludes all liability for all claims, expenses, losses, damages and costs that the Discloser may incur as a result of the Confidential Information, for any reason, being inaccurate or incomplete in any way or incapable of achieving any purpose.
- 6.4 The maximum aggregate liability of one party to the other in relation to this Agreement is limited to NZD [REDACTED]. Neither party will be liable to the other party in relation to this Agreement for any loss of profit, revenue, savings, business or goodwill, or for any consequential, indirect, incidental or special damage or loss of any kind.

7 INTELLECTUAL PROPERTY RIGHTS

- 7.1 The Background Intellectual Property of each party remains the property of that party.
- 7.2 The Recipient is not authorised to cause any third-party to reverse engineer or decompile any of the products or derivative works of the Discloser; nor may the Recipient itself engage in reverse engineering or decompilation of any of the products or derivative works of the Discloser.
- 7.3 Intellectual Property created or developed as a result of the Recipient's use of the Confidential Information (**Project Intellectual Property**), excluding Background IP already existed in the Confidential Information, will be jointly owned by Discloser and Recipient.
- 7.4 The Recipient must not commercialise or exploit the Project Intellectual Property created or developed as a result of the Recipient's access to the Confidential Information unless either:
- (a) the parties have entered into an agreement regarding collaboration, and/or commercialization and exploitation of the Project Intellectual Property; or
 - (b) the Discloser grants the Recipient its prior written consent.

8 EXCLUSIONS

The obligations of confidentiality under this agreement do not extend to information which:

- (a) is in or becomes part of the public domain otherwise than through breach of this agreement or an obligation of confidence owed to the Discloser;
- (b) the Recipient can prove by contemporaneous written documentation was already known to it at the time of its disclosure by the Discloser or any of its Representatives (unless such knowledge arose from disclosure or use of information in breach of an obligation of confidentiality); or

- (c) the Recipient acquired from a source other than the Discloser or any of the Discloser's Representatives, where such source is entitled to disclose or use it without an obligation of confidence..

9 TERMINATION

Either party may terminate this agreement by giving the other party 30 days prior written notice in writing.

10 RETURN OF CONFIDENTIAL INFORMATION

Upon discussion and reaching mutual agreement by both parties, the Discloser may require the Recipient to cease using the Discloser's Confidential Information. On receiving such a notice the Recipient's, and on completion of the Purpose the Discloser's, right to possess or use Confidential Information of the Discloser ceases and the Recipient must immediately, at the Discloser's option:

- (a) return to the Discloser;
- (b) either:
 - (i) destroy and certify in writing to the Discloser the destruction of; or
 - (ii) destroy and permit the Discloser to witness the destruction of -

all Confidential Information of the Discloser in the Recipient's possession or control.

11 CONTINUING OBLIGATIONS

The obligations of confidentiality under this agreement continue to apply to the parties (in addition to any permitted assignee) after assignment or termination of this agreement or completion of the Purpose.

12 WAIVER

The failure of a party at any time to insist on performance of any provision of this agreement is not a waiver of its right at any later time to insist on performance of that or any other provision of this agreement.

13 ASSIGNMENT

A party may not assign or otherwise transfer any or all of its rights arising out of this agreement without the written consent of each other party.

14 ELECTRONIC EXECUTION

Without limiting to any other method of signing or delivery permitted by law, each party agrees that:

- (a) each party may sign and deliver this agreement electronically;
- (b) the electronic signature, whether digital or encrypted, of a party on this agreement has the same force and effect as his or her manual or 'wet ink' signature; and
- (c) transmission by electronic means of a signed counterpart of this agreement (whether signed electronically or otherwise) has the same effect as physical delivery of the hard copy bearing an original manual or 'wet ink' signature of the signatory.

15 GOVERNING LAW

This agreement is governed by the non-exclusive jurisdiction of the State of Victoria, Australia.

16 PUBLICATIONS

The Recipient and its officers and employees may include the Confidential Information in any academic publication or presentation of Results (Publication). Where the Data includes or is derived from, information about identifiable individuals and/or de-identified information about individuals, the Recipient will ensure that Publications do not include any information in a form that could reasonably be expected to identify those individuals.